In Sri.Naveen Hegde vs Central Bureau Of on 30 April, 2016

IN THE COURT OF THE XLVII ADDITIONAL CITY
CIVIL & SESSIONS JUDGE & SPECIAL JUDGE FOR
C.B.I. CASES (CCH-48), BENGALURU

Dated this the 30th day of April 2016

Present: SRI.ASWATHA NARAYANA, B.Sc., LL.M.,
XLVII Additional City Civil & Sessions Judge
& Special Judge for CBI Cases, Bengaluru.

CRIMINAL APPEAL Nos.74/2013,
76/2013 & 84/2013

APPELLANT IN CRIMINAL APPEAL NO.74/2013 (Accused-7 before Trial Court):	Sri.Naveen Hegde, S/o.Sri.Sadananda Hegde, Aged about 41 years, Residing at No.10, 6th Main, S.K.Nagar, Near Mahalakshmi Layout Bus Stand, Bengaluru-560 096. (By Sri.Praveen Hegde, Advocate.)
APPELLANT IN CRIMINAL APPEAL NO.76/2013 (Accused-1 before Trial Court):	Sri.B.R.Anil Kumar, S/o.Sri.B.R.Ranganath, Aged about 35 years, Managing Partner, M/s.Sree Krishna Enterprises, Bengaluru. Residing at No.15, MSR Nagara, 8th 'B' Cross, New BEL Road, Bengaluru-560 054. (By Sri.H.P.Leeladhar, Advocate.)
APPELLANTS IN CRIMINAL APPEAL	1. Sri.Gajendra, S/o. Sri.Chandrashekar, Aged about 50 years,

NO.84/2013
(Accused-6 & 8 before
Trial Court):

Residing at No.75,
12th 'C' Cross,
6th Block, Rajajinagara,
Bengaluru-560 010.

2. Sri.Krishnappa @
Basavannappa,
S/o.Late Sri.Narappa,
Aged about 78 years,
Residing at No.8/4,Azad
Nagara, Chamarajpet,
Bengaluru. ... (Abated)

(By Sri.Praveen Hegde,
Advocate.)

-Vs-

RESPONDENT
IN ALL THE
CRIMINAL APPEALS
(Complainant before
Trial Court):

Central Bureau of
Investigation,
SPE/CBI/EOW/Chennai,
Represented by the Office of
the Public Prosecutors,
CBI Head Quarters, RT Nagara,
Bengaluru.

(By Public Prosecutor.)

COMMON JUDGMENT IN CRIMINAL APPEAL
NOs.74/2013, 76/2013 & 84/2013

All these 3 Appeals are filed against the Judgment of Conviction and Sentence passed by the XVII Additional Chief Metropolitan Magistrate and Special Court for CBI Cases, Bengaluru (for short 'the Trial Court') in C.C.No.19957/2008 on 17.01.2013 convicting and sentencing the Accused-1, 6, 7 & 8 for the offence

punishable under Sections 120-B and 420 of the Indian Penal Code, 1860 (for short, 'the IPC'), the Accused-1, 6 & 7 for the offence punishable under Sections 467, 468 and 471 of the IPC and the Accused-8 for the offence punishable under Section 419 of the IPC.

2. As the Respondent in all these 3 Appeals is one

and the same person, as all these 3 Appeals are from a common Judgment passed by the Trial Court, as the evidence relied upon by both the parties is one and the same in all these Appeals and as the contentions of all the parties of these Appeals are similar, for the sake of convenience, these Appeals are taken together for disposal through a Common Judgment.

3. The Appellant in Criminal Appeal No.74/2013 was the Accused-7, the Appellant in Criminal Appeal No.76/2013 was the Accused-1 and the Appellants-1 & 2 in Criminal Appeal No.84/2013 were the Accused-6 and 8 respectively in C.C.No.19957/2008 before the Trial Court. The Respondent of all these Appeals was the Complainant in C.C.No.19957/2008 before the Trial Court. For the sake of convenience, parties of all these Appeals are referred to as per their rank before the Trial Court.

4. Before the Trial Court, the Complainant filed Charge Sheet alleging that the Accused-1 to 9 entered into Criminal Conspiracy in the month of June 2004 in order to Cheat the Syndicate Bank, Frazer Town Branch, Bengaluru

(for short, 'the Bank') by availing OD facility of Rs.150 Lakhs by using forged and fabricated documents and also cheating by personation and that in pursuance of the said Criminal Conspiracy, the Accused-1 to 9 committed all those illegal acts and that thereby, the Accused-1 to 9 have committed offences punishable under Sections 120-B r/w. 419, 420, 465, 468 and 471 of the IPC.

5. After furnishing Copies of Charge Sheet to the Accused-1 to 9 and after hearing both the sides before framing Charge, the Trial Court framed Charge against the Accused-1 to 9 for the offence punishable under Sections 120-B, 419, 420, 467, 468 and 471 of the IPC, for the offence punishable under Sections 420 r/w. 120-B, 467 r/w. 120-B and also 468 and 471 r/w. 120-B of the IPC. When the said Charge was read over and explained to the Accused-1 to 9, they did not plead guilty and claimed trial.

6. During trial before the Trial Court, the Complainant got examined 42 Witnesses as P.W.1 to P.W.42 and got marked 248 Documents as Ex.P.1 to Ex.P.248 on his behalf. With that evidence, the Complainant closed his side.

On examination of the Accused-1 to 9 under Section 313 of the Code of Criminal Procedure, 1973 (for short, 'the Cr.P.C.), the Accused-1 to 9 denied all the incriminating evidence placed against them. But, they did not choose to examine any witnesses on their behalf. However, they got marked 2 documents as Ex.D.1 and Ex.D.2 on their behalf.

With that evidence, the Accused-1 to 9 also closed their side.

7. After hearing arguments of both the sides, the Trial Court passed Judgment on 17.01.2013 acquitting the Accused-2, 3, 4, 5 and 9 for the offence punishable under Sections 120-B, 419, 420, 467, 468 and 471 of the IPC and convicting and sentencing the Accused-1, 6, 7 and 8 as under:

1. For the offence punishable under Section 120-B of the IPC, the Accused-1, 6, 7 and 8 shall undergo Simple Imprisonment for a period of 6 months and pay a fine of Rs.500/- each and undergo Simple Imprisonment for a period of 1 month in default to pay fine amount;

2. For the offence punishable under Section 420 of the IPC, the Accused-1, 6, 7 and 8 shall undergo Simple Imprisonment for a period of 1 year and pay a fine of Rs.1,000/- each and undergo Simple Imprisonment for a period of 2 months in default to pay fine amount,;

3. For the offence punishable under Section 467 of the IPC, the Accused-1, 6 and 7 shall undergo Simple Imprisonment for a period of 1 year and pay a fine of Rs.1,000/- each

and undergo Simple Imprisonment for a period of 2 months in default to pay fine amount;

4. For the offence punishable under Section 468 of the IPC, the Accused-1, 6 and 7 shall undergo Simple Imprisonment for a period of 1 year and pay a fine of Rs.1,000/- each and undergo Simple Imprisonment for a period of 2 months in default to pay fine amount;

5. For the offence punishable under Section 471 of the IPC, the Accused-1, 6 and 7 shall undergo Simple Imprisonment for a period of 6 months and pay a fine of Rs.500/- each and undergo Simple Imprisonment for a period of 1 month in default to pay fine amount;

6. For the offence punishable under Section 419 of the IPC, the Accused-8 shall undergo Simple Imprisonment for a period of 6 months and pay a fine of Rs.500/- and undergo Simple Imprisonment for a period of 1 month in default to pay fine amount.

8. Aggrieved by the said Judgment of conviction and sentence, the Accused-1, 6, 7 and 8 have filed all these Appeals.

9. Sum and substance of the grounds urged by the Accused-1 in his Appeal are as follows:

The Judgment of conviction and sentence passed by the Trial Court is opposed to all cannons of facts and circumstances of the case. The said Judgment is arbitrary, vexatious and perverse. The Trial Court has failed to see that there must be a meeting of mind of the Accused-1 with the Accused-6 and 7 in order to convict him for the offence punishable under Section 120-B of the IPC. The Trial Court has erred in relying upon the Confession Statement of the Accused-6 and 7 to implicate the Accused-1. The Trial Court has committed an error in convicting the Accused-7 for the offence punishable under Sections 420, 467, 468 and 471 of the IPC, though the Complainant did not place any providence to prove the ingredients of those offences. The Trial Court has failed to note that the entire transaction between the Bank and the

Accused-1 is of civil in nature and that the Complainant misused the said transaction as a criminal offence to get rid of the responsibilities of P.W.2, P.W.6, P.W.8, P.W.16 and P.W.39. The Trial Court has not properly appreciated the evidence of P.W.6, P.W.7, P.W.17, P.W.19, P.W.31, P.W.35, P.W.37 and P.W.38, which is in favour of the Accused-1. The Trial Court has not properly appreciated the DRT Proceedings in ASA No.87/2006 and also the fact that the entire amount was cleared to the Bank, which shows that the Accused-1 had no fraudulent or dishonest intention to deceive the Bank. The Trial Court has failed to see that P.W.41 has compared the signatures in the

absence of admitted signatures, which is contrary to the procedure for the Handwriting Expert. The Trial Court has erred in convicting the Accused-1 in the absence of evidence of Sri.Krishnappa. The Trial Court has not at all looked into the Cross-examination made on behalf of the Accused-1. The Trial Court has not properly appreciated the admission of P.W.26 about the identity of the Accused-8. Even otherwise, the entire materials placed on record by the Complainant in support of his case is lacking of all the ingredients of the offences and hence, the Trial Court has erred in convicting the Accused-1.

10. Sum and substance of the grounds urged by the Accused-6 & 8 in their Appeal are as follows:

The Judgment of the Trial Court is illegal, unjust and against the settled principles of law and also the fundamentals of the Criminal Jurisprudence. The Trial Court has failed to appreciate the evidence that was brought on record from the side of the Prosecution. The Trial Court has wrongly interpreted the entire case and interpreted the whole case in the manner of a civil case. The Trial Court has not looked into the Cross-examination made on behalf of the Accused. The Trial Court has failed to appreciate the evidence of witnesses, who had deposed in terms of the identity of the Accused-8. Though P.W.26 has identified the Accused-8 as 'Krishnappa @ Basavannappa', the Trial Court has not considered the same. The Trial Court has come to imaginary conclusion based on the

statements of the co-Accused made under Section 164 of

the Cr.P.C. The Trial Court has interpreted the evidence on record to its tunes and the tunes of the case of the Prosecution in terms of the allegation set forth. The Trial Court has ignored that the Prosecution has not produced any piece of material to show that the property in dispute was a BDA property as claimed by the Complainant. The Trial Court has erred in coming to conclusion in its entirety that the Accused-6 has no role whatsoever, apart from the Confession Statement. But, the Trial Court ought to have borne in mind the statements of all the witnesses, facts and circumstances and also the payments as admitted, while giving its verdict. The Trial Court has erred in looking into the Exemption Applications and the 313 Statements to come to conclusion that the name of the Accused-8 is Basavannappa by ignoring the evidence available on record. Without assigning any reasons whatsoever, the Trial Court has convicted the Accused-6 and 8. Hence, Judgment of conviction and sentence passed by the Trial Court is liable to be set aside.

11. Sum and substance of the grounds urged by the Accused-7 in his Appeal are as follows:

The Judgment of the Trial Court is illegal, unjust and against the settled principles of law. The Trial Court has given a go by to the basic principles of law that the Prosecution has to prove the case beyond any reasonable doubt and that the benefit of doubt shall be given to the

Accused. The Trial Court has failed to appreciate the facts and circumstances of the case and it has wrongly interpreted the entire case as if it is a civil case. The Trial Court has not looked into the Cross-examination portion of the evidence given by the witnesses. The Trial Court has failed to appreciate the facts of the witnesses, who had deposed in terms of the identity of the Accused-8. Though P.W.26 has clearly deposed about identity of the Accused-8 as 'Krishnappa @ Basavannappa', the Trial Court has not considered the same. The Trial Court has come to imaginary conclusion based on the statements of the co-Accused made under Section 164 of the Cr.P.C. The Trial Court has failed to appreciate that the Accused-7 has nothing to do with any of the transactions of the firm of the Accused-1 to 5. The Trial Court has erred in coming to a conclusion that the Accused-7 was monetarily benefited through Ex.P.56, which was cleared as a Bearer Cheque. The Trial Court ought to have borne in mind all the statements of all the witnesses, facts and circumstances

and admissions as admitted and payments while giving its verdict. The Trial Court has convicted the Accused-7 by relying upon the statement of the co-Accused, though there is no material against him. Hence, Judgment of conviction and sentence passed by the Trial Court against the Accused-7 is liable to be set aside.

12. In view of the death of the Accused-8, i.e., Appellant-2 of Criminal Appeal No.84/2013, this Court passed an Order on 21.12.2013 deleting the Accused-8

from the Appeal. As such, the Appeal of the Accused-8 stands abated due to his death after filing of the Appeal.

13. Heard arguments of both the sides. Records perused.

14. The learned Counsel appearing on behalf of the Accused-1 has relied upon the following citations:-

1. George Zacharia @ Raju Karuvamplakka -Vs- T.K.Varghese & Another [1994(3) Crimes 758];

2. State of Punjab -Vs- Jagjit Singh [1994(1) Crimes 186];

3. CBI, ACB, Mumbai -Vs- Narendra Lal Jain & Others [2014(3) KCCR SN 176 (SC)];

4. Vasudeo Kulkarni -Vs- Surya Kant Bhatt and Another [AIR 1977 SC 1760];

5. Ramesh Bhai Atmaram Vaghela -Vs- State of Gujarat & Another [2012 Crl.L.J. 2386];

6. Madhavrao Jiwaji Rao Scindia and Another, etc. -Vs- Sambhajirao Chandrojirao Angre and others, etc., [AIR 1988 SC 709];

7. Ram Jas -Vs- State of Uttar

Pradesh [1974 SC 1811];

8. Basappa -Vs- State of Karnataka [ILR 1995 Kar. 2266].

15. Sum and substance of the principles laid down in the decisions of the above citations are as follows:-

If the dispute is of civil nature and the ingredients of Sections 419 and 420 of the IPC are not made out, it is not right to interfere with the acquittal of the Accused;

Simple refusal of the Accused to give specimen signatures or specimen handwriting is of no consequence, especially when the signature and handwriting of the Accused were available in the record;

In respect of allegation of obtaining loan by inflating credit worthiness, if the parties settled their civil liability to pay amount amicably and if the Bank does not have subsisting grievance, exercising of inherent power by the High Court quashing under Section 482 relating to the offences punishable under Sections 420 and 120-B of the IPC is not faulty or erroneous;

If the case of the Prosecution is doubtful, the Accused is entitled to benefit of doubt;

If the alleged Breach of Trust constitutes only civil wrong, proceedings have to be quashed;

To convict the Accused for the offence of Cheating by personation, it is necessary to prove all the ingredients of Section 415 of the IPC;

In the absence of examination of vital witnesses, Prosecution must fail and benefit of doubt must go to the Accused;

Mere failure to fulfill promise subsequently is not cheating;

To hold a person guilty of cheating, it is necessary to show that he had fraudulent or

dishonest intention at the time of making the promise.

16. The learned Counsel appearing on behalf of the Accused-6 and 7 has relied upon the following citations:-

1. Chandrakant Chimanlal Desai -Vs- State of Gujarat [(1992) 1 SCC 473];
2. State of Himachal Pradesh -Vs- Jai Lal and Others [AIR 1999 SC 3318(1)];
3. Ramesh Bhai Atmaram Vaghela -Vs- State of Gujarat and Another [2012 Crl. L.J. 2386];
4. Gian Mahtani and Another -Vs-The State of Maharashtra and Another [1971(2) SCC 611];
5. Bhagwan Singh and Others -Vs- State of Madhya Pradesh [AIR 2003 SC 1088(1)];
6. Gobardhan Rajbanshi -Vs- State of Jharkhand (2002 Crl.L.J.3301);
7. Devendra Prasad Tiwari -Vs- State of Uttar Pradesh[AIR 1978 SC 1544];
8. Govinda Pradhan and Another -Vs- State of Orissa [1991 Crl.L.J. 269].

17. Sum and substance of the principles laid down in the decisions of the above citations are as follows:-

Evidence of Handwriting Expert is not decisive, unless Prosecution version is believable;

In order to bring the evidence of a witness as that of an expert, it has to be shown that he has made a special study of the subject or acquired a special experience therein or in other words that he is skilled and has adequate knowledge of the subject. An expert is not a witness of fact. His evidence is really of an advisory character;

Confession evidence can be used in support of other evidence. Court should first marshal the evidence against the Accused excluding the consideration from confession. If on such consideration, conviction can safely be based, then only confession can be used to support that belief or conclusion;

Confession not recorded in proper form, possibility of putting pressure on the Accused to give confession and retracting of that confession by the Accused subsequently is not sufficient to prove guilt and involvement of the Accused;

Voluntariness of confession not ascertained by the Magistrate at the time of recording confession amounts to non-compliance of Section 164 of the Cr.P.C., and the said defect cannot be cured by examination of Magistrate as witness;

Before a confessional statement made under Section 164 of the Cr.P.C., can be acted upon, it must be shown to be voluntary and free from police influence;

At the time of recording the confession by the Magistrate, the Investigating Officer accompanying the Accused to Jail and back to Magistrate and time of 5 to 10 minutes only was given to the Accused for cool reflection. Such a Confession Statement of the Accused is liable to be rejected.

18. Keeping in view the above principles of law, this case is dealt with.

15 [Common Judgment in Criminal Appeal Nos.74/2013, 76/2013 & 84/2013]

19. On considering the grounds urged by the Accused-1, 6 and 7 and also the arguments advanced on behalf of both the parties, the Points that arise for determination in these Appeals are as follows:

1. Whether the Trial Court has committed error in holding that the Accused-8 has cheated by personation, as appealed?

2. Whether the Trial Court has committed error in holding that the Accused-1, 6 and 7 committed forgery, as appealed?

3. Whether the Trial Court has committed error in holding that the Accused-1, 6 and 7 used the forged documents as genuine documents knowing or having reason to believe to be forged documents, as appealed?

4. Whether the Trial Court has committed error in holding that the Accused-1, 6 and 7 cheated the Bank, as appealed?

5. Whether the Trial Court has committed error in holding that the Accused-1, 6 and 7 committed Criminal Conspiracy with the Accused-8 to Cheat the Bank by way of Personation, Forgery and using Forged Documents as Genuine Documents, as appealed?

6. Whether the Conviction and Sentence passed by the Trial Court against the Accused-1, 6 and 7 are illegal, as appealed?

7. What Order?

20. Findings of this Court on the above Points are as follows:

Point No.1 : Negative;

Point No.2 : Negative;

Point No.3 : Negative;

Point No.4 : Negative;

Point No.5 : Negative;

Point No.6 : Affirmative;

Point No.7 : See final portion of this Judgment.

REASONS

UNDISPUTED FACTS

21. M/s. Shree Krishna Enterprises is a Firm carrying on the business of wholesale distribution of Liquor. The Accused-1 is the Managing Director and the Accused-2 to 5 are the Partners of the said Firm.

22. In the year 2003, the Accused-1 to 5 availed OD facility to the tune of Rs.30,00,000/- in the name of their firm at Canara Bank, Vasantha Nagara Branch, Bengaluru. Properties of the Accused-2, 4 and 5 were mortgaged to that Bank as security for the said credit facility.

23. In the year 2004, the Bank sanctioned OD facility to the tune of Rs.100 Lakhs including taking over the liability of the Accused-1 to 5 with Canara Bank, Vasantha Nagara Branch. 3 Properties of the Accused-2, 4 and 5, which were mortgaged to Canara Bank, were mortgaged to

the Bank. In addition to that security, the Accused-8 mortgaged property bearing No.75 said to be situated at 12th Cross, Vijaya Nagara, Bengaluru-43, as security in respect of the OD facility granted by the Bank to the Accused-1 to 5.

24. As the Accused-1 to 5 failed to repay the dues to the Bank, the Bank filed a case before the Debt Recovery Tribunal for recovery of dues. The Accused-2, 4 and 5 brought Stay Order for auction of their properties given as security to the Bank. However, the property mortgaged by the Accused-8 to the Bank was auctioned. In that auction M/s.SBG Impex Private Limited (for short, 'the

Purchaser') purchased that property for Rs.1.6 Crores.

25. As the said auction amount was in excess of dues to the Bank, the Bank called upon the Accused-1 to 5 and 8 to take refund of the excess amount. The Accused-8 filed an Application seeking refund of that excess amount. The Accused-1 to 5 said 'No Objection' for such payment to the Accused-8.

26. Meanwhile, Khatha of the property purchased by the Purchaser was not changed by the BBMP on the ground that no such property was in existence and that the documents of that property were forged. Due to the said reason, the Purchaser approached the Bank for cancellation of the auction transaction and also for refund of the amount

deposited by him. The Bank refunded the deposited amount to the Purchaser.

27. An internal enquiry was conducted in the Bank by P.W.4-Sri.S.Madan, Vigilance Officer and he submitted Report as per Ex.P.57 and on the basis of that Report, P.W.1-Sri.S.Seetharamu lodged Complaint as per Ex.P.1 to the Complainant. P.W.40-Sri.T.Murugeshan conducted investigation and filed Charge Sheet. After trial, the Trial Court acquitted the Accused-2 to 5 and 9 and convicted the Accused-1, 6, 7 and 8.

28. All the above facts are not under dispute.

POINT-1

29. As observed above, it is not in dispute that the Accused-8 stood as Guarantor to the credit facility taken by the Accused-1 to 5 in the name of the firm from the Bank. It is also not in dispute that he has executed Ex.P.9, Ex.P.13, Ex.P.25 to Ex.P.30, Ex.P.38 and Ex.P.104 in the name of Krishnappa by giving his father's name as 'Narappa', daughters names as 'Umadevi and Nagarathna' and that by giving his address as 'No.75, 12th Cross, Vijayanagara, Bengaluru-40'. According to the Complainant, the Accused-8 is 'Basavanna @ Basavannappa, son of late Siddappa' and resident of No.8/4, Azad Nagara, Chamarajpet, Bengaluru and he is not 'Krishnappa' as

described in the Loan documents referred to above. According to the Complainant, the Accused-8 has cheated

by personating as 'Krishnappa' in the said credit transaction with the Bank. On the other hand, the Accused-1, 6, 7 and 8 have denied the said contention of the Complainant. It is the contention of the Accused-8 that his name is 'Basavannappa @ Krishnappa'. As such, now it has to be seen as to whether the Accused-8 is 'Basavanna @ Basavannappa' as claimed by the Complainant or 'Basavanna @ Krishnappa' as claimed by the Accused-8.

30. The Complainant has strongly relied upon the evidence of P.W.4 to substantiate his contention. As per the instructions of the Chief Vigilance Officer, P.W.4-Sri.S.Madan, who was the Senior Manager, Vigilance Unit of Syndicate Bank, Bengaluru, conducted investigation about the allegation of fraud relating to the said credit transaction of the Accused-1 to 5 and 8 with the Bank. But, it is not his evidence that the Accused-8 is 'Basavanna @ Basavannappa', he is not 'Krishnappa' and that he personated as 'Krishnappa'. However, he has deposed that during investigation, he visited the property of Krishnappa along with Branch Officials-Sri.A.J.Ashok Kumar and P.W.2-Sri.M.Kemparaju and that during that visit, it was learnt from one Narayanappa that the property owner-Krishnappa was residing in a nearby place and that then, he and his colleagues visited the house of that Krishnappa and that there they found that one Krishnappa was living in that house, who was different person from the person and that who executed the documents in the Bank. He has further deposed that said Krishnappa informed that he had no

property or land in that area as he had sold the same long back and that as such, it was clear that a different person personating as Krishnappa executed documents in the Bank in respect of non-existing property. According to P.W.4, a Visit Report as per Ex.P.61 and Enquiry Report as per Ex.P.57 were prepared and submitted to the Bank.

31. In the Cross-examination, P.W.4 has stated that he did not prepare Mahazar at the spot, when he visited the property of Krishnappa, and that he prepared Visiting

Report in the Bank. He has stated that he collected Photo of Krishnappa and submitted to the Bank along with Ex.P.57. But, the said Photo is not produced in this case. He has stated that he did not record the statements of Narayanappa, Krishnappa or any one near the property of Krishnappa. He has not taken signatures of Krishnappa, Narayanappa or any other independent person to Ex.P.61. There is no explanation from P.W.4 in this regard. If at all the things had happened as stated by P.W.4, he would have recorded such statements and taken such signatures to Ex.P.61. As he has not done so, a serious doubt arises about his evidence.

32. P.W.2 has given his evidence and produced 56 documents pertaining to this case. But, it is not his evidence that he accompanied P.W.4 during investigation, he met Narayanappa and Krishnappa and that he came to know that some one personating as Krishnappa executed the documents in the Bank as stated by P.W.4. On the

other hand, in his Cross-examination at Page-11, he has specifically stated that during loan transaction or when the mortgage was created or at the time and subsequent to DRT Proceedings, he never met Krishnappa. Though P.W.4 has stated that P.W.2 and Sri.Ashok Kumar are also the signatories to Ex.P.61 and though he identified those signatures as Ex.P.61(b) and Ex.P.61(c), P.W.2 has not whispered about the same. As such, it is clear that the evidence of P.W.2 and P.W.4 is inconsistent with and runs contrary to each others evidence, which also creates a serious doubt in the evidence of P.W.4. Sri.Ashok Kumar, Sri.Narayanappa and Sri.Krishnappa son of Narappa, referred to by P.W.4, have not come forward to support the version of P.W.4. As P.W.4 has not stated anything against the Accused-8 either in respect of his name or about the allegation that the Accused-8 personated as 'Krishnappa' and as it is not his evidence also that he had met and enquire the Accused-8 at any point of time and as there are doubtful circumstances in the evidence of P.W.4, it is not safe to rely upon his evidence. But, by ignoring all these aspects, the Trial Court has erroneously accepted the evidence of P.W.4 in favour of the Complainant.

33. The Complainant has also relied upon the evidence of P.W.26 in support of his contention that the Accused-8 is 'Basavanna @ Basavannappa' and not 'Krishnappa'. P.W.26 is working as a Security Guard in the

Parking Section of Ramakrishna Lodge, Bengaluru. On the date of his examination before the Court, the Accused-8

was absent. The learned APP confronted Photo-Ex.P.93 to P.W.26 for identifying the Accused-8 in the Court. On seeing that Photo, P.W.26 identified the Accused-8. He has deposed that he was acquainted with the Accused-8 as he was coming once in a week to the Lodge to have a cup of Coffee and that he used to talk to him at that time. He has deposed that the said person is 'Krishnappa', but, he had also come across that certain people were calling him as 'Basavannappa' and that when he asked 'Krishnappa' about his name, he told that he was called by both the names. This witness has not stated that the Accused-8 is 'Basavanna @ Basavannappa' and not 'Krishnappa'. As such, the evidence of this witness is of no assistance to the Complainant. On the other hand, as this witness has stated that the Accused-8 is 'Krishnappa' and that he is also called as 'Basavannappa', evidence of this witness supports the contention of the Accused-1, 6, 7 & 8 that the Accused-8 is 'Krishnappa @ Basavannappa'. The Trial Court did not accept the said evidence of P.W.26 in favour of the Accused-1, 6, 7 and 8 by opining that P.W.26 has been won over by the Accused-1, 6, 7 and 8 and that he was not speaking truth. It is not the contention of the Complainant himself that P.W.26 has been won over by the Accused-1, 6, 7 and 8 and that he was not speaking truth. To come to such an opinion, the Trial Court has relied upon the Statement recorded by the Investigating Officer under Section 161 of the Cr.P.C., during investigation and given reason that P.W.26 has not stated in that Statement that the name of the Accused-8 as 'Krishnappa'. The said

Statement is not admitted in the evidence as per Proviso to Section 162(1) of the Cr.P.C. Though the said Statement cannot be used for any purpose as per Section 162(1) of the Cr.P.C., the Trial Court has erroneously used and relied upon that Statement to form an opinion that P.W.26 has been won over by the Accused-1, 6, 7 and 8. Thus, the Trial Court has committed error by not appreciating the evidence of P.W.26 properly.

34. The Complainant has also relied upon the evidence of P.W.40, who has investigated this case. In his

evidence, though P.W.40 has stated that he secured the Accused-8, interrogated him and recorded his Statement, he has not stated that the Accused-8 is not 'Krishnappa' and that he is 'Basavanna @ Basavannappa'. P.W.39 was working as DGM of Syndicate Bank, Regional Office, Bengaluru, from 2006 to 2008. According to him, as per Ex.P.78-Circular of Syndicate Bank, while opening the Account of borrower or guarantor, KYC has to be complied and documents like Photo and Residential Address Proof have to be obtained. In his Cross-examination, P.W.39 has stated that custodian of the documents relating to KYC is the Officer in the Branch concerned, documents relating to KYC either of the borrower or the guarantor would not move out of the Bank and that every Manager is bound to follow Ex.P.78. It is not the contention of the Complainant that KYC documents are not obtained by the Bank in respect of the Accused-8, while he was taken as guarantor to the credit facility of the Accused-1 to 5. In the Cross-

examination, P.W.40 has specifically admitted that from the Bank, he could have obtained the I.D. Proof of 'Krishnappa @ Basavannappa' and that he has not done it. There is no explanation from him from not collecting KYC documents to know the identity of the Accused-8. Even otherwise, P.W.40 could have collected documents such as Voters' I.D. Card, Ration Card etc., from the public Office to know his identity. But, he has not done so. As the said KYC documents or other identity documents relating to the Accused-8 are very material to this case and as P.W.40 has not collected the said documents, an adverse inference has to be drawn against the Complainant. Non-collection of such identity documents by P.W.40 throws a serious doubt in the case of the Complainant.

35. In the Cross-examination, the learned counsel appearing on behalf of the Accused-6 to 8 confronted Ex.D.1-Certificate with Photo of the Accused-8, said to have been issued by Gandhi Old Age Home on 04.10.2012. By confronting that Photo, it was suggested to P.W.40 that the person seen in the Photo of that document was the person, whom he examined as 'Krishnappa @ Basavannappa'. P.W.40 has admitted the said suggestion. Apart from that admission, in his Cross-examination, P.W.40 has referred the name of the Accused-8 as 'Krishnappa @ Basavannappa' for more than 10 times. These admissions negative the contention of the Complainant and fortify the contention of the Accused-1, 6, 7 and 8. The Trial Court did not accept the said admission by stating that P.W.40

has clearly deposed that the Accused-8 has impersonated as 'Krishnappa'. But, the evidence of P.W.40 does not show such a Statement from him.

36. P.W.40 has stated that he took specimen signatures of Krishnappa, who is the original owner of the property mortgaged to the Bank by the Accused-8, as per Ex.P.237. As per Ex.P.62 and Ex.P.136, said Krishnappa is the son of Narappa. The Accused-8 has executed the documents in the name of 'Krishnappa son of Narappa' only. As such, according to the Complainant, the original owner of the property mortgaged to the Bank is 'Krishnappa son of Narappa'. But, in his Cross-examination at Page-23, P.W.40 has stated that he recorded the Statement of Krishnappa, he did not collect any identity documents of Krishnappa, the person whom he met was 'Krishnappa son of Narayanappa' and that he did not meet any person by name 'Krishnappa son of Narappa'. These answers of P.W.40 show that he never met 'Krishnappa son of Narappa', who is said to be the original owner of the property mortgaged to the Bank. As he did not meet 'Krishnappa son of Narappa', his evidence is of no assistance to the Complainant to show that the Accused-8 personated as 'Krishnappa son of Narappa'. Though P.W.40 has stated at Page-23 that he recorded the Statement of 'Krishnappa', at Page-24, he has stated that he did not record his Statement and that he did not make him as a witness as he was 90 years old and sick person. This Statement of P.W.40 contradicts his earlier Statement.

This circumstance also creates a serious doubt in the evidence of P.W.40. Nothing prevented P.W.40 to collect identity documents of said 'Krishnappa son of Narayanappa', who is said to be the original owner of the property in dispute. But, he has not done so. In Page-38 of his evidence, P.W.40 has stated that 'Krishnappa son of Narayanappa' has 2 sons. If at all the said Krishnappa was unable to give his Statement and to depose before the Court as a witness due to his old age and sickness, as stated by P.W.40, P.W.40 could have examined any one of those 2 sons of Krishnappa and made them as witnesses in this case. But, he has not done so. There is no explanation from P.W.40 in respect of these lapses. As the evidence of

Krishnappa, his identity documents and the evidence of sons of Krishnappa are very material to this case, non-placing of such evidence by P.W.40 creates a serious doubt in the case of the Complainant. The benefit of all these doubts must go to the Accused-8.

37. P.W.42-Sri.Mallanagowda Shankaragowda Patil was working as XVII ACMM, Bengaluru, from May 2005 to May 2009. On the Requisition of P.W.40, P.W.42 recorded the Confession Statement of the Accused-6 on 27.06.2008 as per Ex.P.244(a) and that of the Accused-8 on 31.07.2008 as per Ex.P.245(a). Ex.P.244 and Ex.P.245 are the Order Sheets maintained by P.W.42 in respect of those statements. As P.W.42 recorded those statements by administering oath to the Accused-6 and 8, P.W.40 requested P.W.42 to record the statements of the Accused-

6 and 8 once again on the ground that those statements were not in accordance with law. By considering that Requisition, P.W.42 recorded Confession Statement of the Accused-6 as per Ex.P.247 and that of the Accused-8 as per Ex.P.248 on 20.09.2008. Ex.P.246 is the Order Sheet maintained by P.W.42 in respect of the said proceedings. As Ex.P.244(a) and Ex.P.245(a) have been recorded after administering oath to the Accused-6 and 8, they have no evidentiary value and hence, those statements have to be ignored.

38. The learned Public Prosecutor has strongly relied upon the evidence of P.W.42 and also Ex.P.247 and Ex.P.248 to substantiate her arguments on the ground that the Accused-6 and 8 have stated in their Confession Statements that the Accused-8 is 'Basavanna @ Basavannappa' and that he personated as 'Krishnappa' in the Bank. The Accused-6 and 8 have retracted the said statements during their Examination under Section 313 of the Cr.P.C., by contending that on the threat and pressure of P.W.40, they gave such statements and that they did not give such statements voluntarily.

39. P.W.42 has deposed that he directed P.W.40 to produce the Accused-6 and 8 for recording their statements once again and that accordingly, they were produced on 11.09.2008. P.W.42 has further deposed that he informed the Accused-6 and 8 that they are not bound to give any statement before him and that if such statement was given,

it would be used against them and that then the Accused-6 and 8 agreed to give statement voluntarily and with free will. He has further deposed that he informed the Accused-6 and 8 to appear on 20.09.2008 to give their statements, if they desire so and that on 20.09.2008, when the Accused-6 and 8 appeared before him, he again informed that they are not bound to give statement before him and that if given, it would be used against them, but, they agreed to give statement before him and that after confirming the same and that after ascertaining that no Police Officer was available in the open Court, he decided to record their statements under Section 164 of the Cr.P.C., and that thereafter, he recorded the statements of the Accused-6 as per Ex.P.247 and that of the Accused-8 as per Ex.P.248. He has further deposed that he read over the contents of those statements to the Accused-6 and 8, for which, they agreed and admitted the contents as true and correct and that then, he took signatures of the Accused-6 and 8 to those statements.

40. As per 164(2) of the Cr.P.C., it is mandatory on the part of the Magistrate to question the Accused, who wants to give Confession Statement, so as to satisfy himself that the Accused wants to give Statement voluntarily. As per Chapter-V and Rule-5 of the Karnataka Criminal Rules of Practice, 1968, the Magistrate shall put the following questions to the Accused:

(i) When were you arrested?

(ii) When did the Police first questioned you?

(iii) How often did they question you?

(iv) Were you detained anywhere before you were taken to custody? If so, when and where?

(v) Were you induced to make a Confession Statement and are you making the Statement as a result of any ill-treatment?

As per that Rule, the Magistrate shall reduce the questions as well as the answers given by the Accused to those questions in writing and after questioning so and only after satisfying himself that the Accused wants to give his Statement voluntarily without any pressure, then only the Magistrate has to proceed to record his Statement. The evidence of P.W.42 and contents of Ex.P.246 to Ex.P.248 show that except telling the Accused-6 and 8 that they were not bound to give such statements and that if given, the same may be used against them, P.W.42 did not put any questions to the Accused-6 and 8 to ascertain and to satisfy himself about the voluntariness of the Accused-6 and 8 in giving such confessions. In fact, P.W.42 did not question the Accused-6 and 8 as to why they were making such confessions. As such, it is clear that P.W.42 did not comply the mandatory procedure as contemplated in Section 164(2) of the Cr.P.C., and Chapter-V and Rule-5 of the Karnataka Criminal Rules of Practice, 1968, which is fatal to the case of the Complainant.

41. It is no doubt true that P.W.42 has deposed that there were no Police Officers in the Court, while he was recording the statements of the Accused-6 and 8. But, P.W.40 has admitted in his Cross-examination at Page-19 that from June 2008 to September 2008, he was in constant touch with the Accused-6 and 8 over Phone. As such, it is clear that during the period when P.W.42 recorded the Confession Statements of the Accused-6 and 8, P.W.40 was in constant touch with the Accused-6 and 8. Ex.D.2 is the Counter filed by P.W.40 on behalf of the Complainant on 06.09.2008 to the Anticipatory Bail Application filed by the Accused-6 and 8. In that Counter, the Complainant has said 'No Objection' for granting Anticipatory Bail to the Accused-6 and 8. All these circumstances do not rule out the influence or pressure of P.W.40 over the Accused-6 and 8 in giving their statements.

42. As there is no compliance of Section 164(2) of the Cr.P.C., and Chapter-V and Rule-5 of the Karnataka Criminal Rules of Practice, 1968 by P.W.42 while recording Confession Statements of the Accused-6 and 8, as observed above, and as possibility of the influence or pressure of P.W.40 over the Accused-6 and 8 during recording of their statements by P.W.42 cannot be ruled out, as observed above, it is not safe to act upon Ex.P.247 and Ex.P.248 in view of the decisions referred to above.

Even otherwise, as there is no other independent acceptable evidence to show that the Accused-8 is not

'Krishnappa' and that he is 'Basavanna @ Basavannappa' and that he personated as 'Krishnappa', Confession Statements alone are not fit to be used to accept the contention of the Complainant about personation, in view of the decisions referred to above. Hence, Ex.P.247 and Ex.P.248 are of no assistance to the Complainant to substantiate his contention. The Trial Court has not at all considered all these important legal aspects and erroneously accepted the evidence of P.W.42 and contents of Ex.P.247 and Ex.P.248 to conclude that the Accused-8 is guilty of cheating by personation.

43. The learned Public Prosecutor has contended that in Ex.P.9, Ex.P.13, Ex.P.25 to Ex.P.30, Ex.P.38, Ex.P.104, Ex.P.126 and Ex.P.127, the Accused-8 has not mentioned his name as 'Basavannappa @ Krishnappa' as contended by him and that in several Applications filed before the Trial Court as well as when he moved Anticipatory Bail and Regular Bail, he did not disclose that his name is 'Basavanna @ Krishnappa' as contended by him, he has signed as 'Basavanna' and that as such, it is clear that the Accused-8 is not 'Krishnappa', but, he is 'Basavanna @ Basavannappa'. It is the argument of the learned Advocate appearing on behalf of the Accused-8 that as Charge Sheet is filed against the Accused-8 by showing his name as 'Basavanna @ Basavannappa', same name is mentioned in the Applications filed on behalf of the Accused-8 and that he has signed in the same name as 'Basavanna' and that as such, much cannot be made against the Accused-8 in this

regard. It is no doubt true that it is common to call a person having an official name in other nick names also. It is a matter of common knowledge that majority of persons, except educated persons, write their names as their signatures without any special characteristics, if they are asked to put their signatures. It is not the contention of the Complainant that the Accused-8 is an educated person, though he knows to put his signature. There is nothing on behalf of the Complainant to show that apart from the Court documents, referred to by the learned Public Prosecutor, the Accused-8 has put his signature and shown

his name as 'Basavanna' or 'Basavannappa' in any documents. As his name is shown in this case as 'Basavanna @ Basavannappa', he might have written his name as 'Basavanna' in those documents when he was asked to put his signature. Similarly, Applications might have been filed in the name of 'Basavanna @ Basavannappa' under the presumption that as his name is shown in the Charge Sheet as 'Basavanna @ Basavannappa', the same name has to be shown in those Applications. As observed above, P.W.40 would have been the best person to collect evidence about the identity of the Accused-8 as contended by the Complainant. But, he has not done so. On the other hand, he himself has referred in his Cross-examination, as observed above, that the Accused-8 is 'Krishnappa @ Basavannappa'. Under all these circumstances, it is not possible to accept the bare contention of the learned Public Prosecutor that the

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Accused-8 is 'Basavanna @ Basavannappa' and that he is not 'Krishnappa' or 'Basavanna @ Krishnappa'.

44. As observed above, P.W.40 has committed serious lapses during the investigation as he failed to examine material witnesses and collect material documents and those serious lapses have created serious doubts in the case of the Complainant. The Trial Court did not give the benefit of those doubts to the Accused-8 on the ground that, as per the decisions of the Supreme Court of India in the cases of State of Karnataka -Vs- K.Yarappa Reddy [AIR 2000 SC 185], Ram Bali -Vs- State of UP [AIR 2004 SC 2329] and Kallu Alias Amit -Vs- State of Haryana with Joginder and Another -Vs- State of Haryana [2012 AIR SCW 4605], if there are lapses by the Investigating Officer, the Court has to look into other evidence, scrutinize it independently without the impact of the investigation and that as there is sufficient evidence to prove the guilt of the Accused-8, he cannot take advantage of the lapses committed by the Investigating Officer i.e., P.W.40. It is true that merely because there are lapses and defects in the investigation, the other acceptable evidence available on record cannot be ignored or discarded. But, in the case on hand, there is no any other acceptable evidence on behalf of the Complainant, as observed above, to show that the Accused-8 is Basavanna @ Basavannappa and that he is not Krishnappa. Hence, serious doubts arising out of material defects in the investigation and serious lapses committed by P.W.40

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cannot be ignored to deny the benefit of those doubts to the Accused-1 as those doubts cut the root of the case of the Complainant. As such, it is clear that the Trial Court has committed a serious error in this regard.

45. As observed above, the evidence of P.W.4, P.W.26, P.W.40 and P.W.42 is of no assistance to the Complainant to show that the Accused-8 is not 'Krishnappa son of Narappa', he is 'Basavanna @ Basavannappa son of Siddaiah' and that he personated as 'Krishnappa son of Narappa' while executing documents in favour of the Bank. Hence, it is not fit to accept the bare contention of the Complainant that the Accused-8 cheated by personation. As observed above, the Trial Court has committed error in not appreciating the evidence properly and it has failed to give benefit of serious doubts, which go to the root of the case of the Complainant, to the Accused-1, 6, 7 and 8. For all these reasons, this Point is answered in the negative.

POINT-2

46. According to the Complainant, the Accused-1, 6 and 7 forged Ex.P.28 to Ex.P.30, Ex.P.62 to Ex.P.69. But, those Accused have denied the said contention of the Complainant.

47. Ex.P.62 is said to be the original Sale Deed dated 09.12.1950 executed by Sri.Patel Munivenkatappa in favour of Sri.Krishnappa son of Sri.Narappa in respect of 6

items of properties. The learned counsel appearing on behalf of the Accused-6 to 8 has contended that Ex.P.62, which was intact when produced to the Bank, has been tampered by the Bank officials as it indicates pasting of cellotapes at 3 places of that document and that laminated sheet of that document is found open. It is true that Ex.P.62 is a laminated document, lamination sheet is found open at the one end to some extent and that cellotapes have been pasted at 3 places of that document so as to join the pieces of that document. However, the learned Counsel appearing on behalf of the Accused-6 to 8 did not explain as to which portion of the contents of that

document are altered or tampered by way of affixing cellotapes and opening of lamination sheet at the one end. On careful scrutiny of Ex.P.62 and its contents, this Court did not find any addition or removal of words or any other type of alteration in the contents or status of Ex.P.62 by such affixture of cellotapes or opening of one end of the laminated sheet of Ex.P.62. It is also not pointed out by the learned Counsel appearing on behalf of the Accused-6 to 8 as to what is the basis to contend that the Bank officials have tampered Ex.P.62 after production in the Bank. He has also not shown as to how and in what manner Bank or its officials would get benefit from such tampering. The Accused-8 has not stated as to what was the status of Ex.P.62, when he gave that document to the Bank. As Ex.P.62 is said to be and appears to be an old document of more than 50 years, it appears that cellotapes are affixed and lamination is made to preserve

the document safely while handling it and that opening of one end of the lamination sheet may be due to defect in lamination or mishandling the document. Under all these circumstances, it is not fit to accept the bare argument of the learned Counsel for the Accused-6 to 8 that Ex.P.62 has been tampered with by the Bank Officials after it was produced by the Accused-8 to the Bank.

48. P.W.13 is the Sub-Registrar working in Peenya Sub-Registrar's Office from 01.04.2007 to 01.04.2008. As per his evidence, he was called to the CBI Office in the year 2008 and that in that Office, he verified Ex.P.62 and compared the same with Ex.P.136, Ex.P.137, Ex.P.138, Ex.P.139 and Ex.P.140 and that on such comparison, he found lot of differences in between Ex.P.62 and Ex.P.136 and that as such, he felt that Ex.P.62 is a fake or bogus document and that it was not issued from the Sub-Registrar's Office, Bengaluru North Taluk. Ex.P.136 is the Certified Copy of Sale Deed dated 09.12.1950 executed by Patel Munivenkatappa in favour of Krishnappa son of Narappa in respect of 6 items referred to in Ex.P.62. Ex.P.137 is the Certified Copy of Sale Deed dated 10.11.1943 executed by Narayanappa son of Venkataramanappa in favour of Patel Munivenktappa in respect of the same 6 items of properties. Ex.P.138 is the Certified Copy of registered Sale Deed dated 03.05.1956 executed by Smt.Nanjamma and her adopted son-Sri.Krishnappa in favour of Smt.Munilakshmamma in respect of the same 6 items of properties. Ex.P.139 is the

Certified Copy of Sale Deed dated 15.06.1953 executed by Krishnappa son of Narappa in favour of Smt.Nanjamma and her adopted son-Sri.Krishnappa in respect of the said 6 items of properties. Ex.P.140 is the Encumbrance Certificate for the period from 01.04.1946 to 30.09.1966, which shows the transactions of Ex.P.136 to Ex.P.139. These Ex.P.136 to Ex.P.140 are the Certified Copies of public documents, which have their own presumptive value. Genuineness of these documents is not disputed by the Accused-1, 6 to 8. As such, there is no impediment to act upon Ex.P.136 to Ex.P.140.

49. Ex.P.62 indicates that it was registered in the Sub-Registrar's Office, Bengaluru North Taluk. Ex.P.136 is the Certified Copy of the Sale Deed in respect of the said sale transaction dated 09.12.1950. This document also shows that the said Sale Deed was registered in the Sub-Registrar's Office, Bengaluru North Taluk. P.W.13 has stated that Sri.S.V.Govinda Gupta was the Sub-Registrar at that time. Ex.P.136 and Ex.P.139 contain the signatures of said Sri.S.V.Govinda Gupta. But, the said signature is not found in Ex.P.62. There is signature in Ex.P.62, which is said to be the signature of Sub-Registrar. But, that signature is totally different from that of the signature of Sri.S.V.Govinda Gupta appearing in Ex.P.136 and Ex.P.139. Even for bare eyes, it is clear that an attempt of imitation of signature of Sri.S.V.Govinda Gupta is made in Ex.P.62. All these circumstances create a serious doubt about the genuineness of Ex.P.62.

50. Ex.P.136 shows that original Sale Deed of that document was written on Rs.5.00 Stamp Paper bearing No.9997 sold to Munivenkatappa with an endorsement as 'ªÀÄÄ¤ªÉAPÀl¥Àà£ÀªÀjUÉ' by Stamp Vendor-Muniyappa of Bengaluru City. Though Ex.P.62 appears to have been written on Rs.5.00 Stamp Paper, it does not bear number as '9997', name of Munivenkatappa and signature that of Muniyappa-Stamp Vendor. Though there is said to be a signature of Stamp Vendor and the name of Purchaser of Stamp Paper, they do not show that Stamp Paper was purchased in the name of Munivenkatappa and that Stamp Vendor was Muniyappa. Though there is a seal in that document showing that it was sold at Bengaluru City, the said Stamp Paper has a round Seal of Malur Taluk

Treasury, which indicates that it was issued from Malur Taluk Treasury. All the seals put in Ex.P.62 are appear to be so fresh, though Stamp Paper appears to be of 50 years old. All these circumstances also create a serious doubt about the genuineness of Ex.P.62.

51. As per Ex.P.136, Archaka Thimmaiah is the scribe of the original Sale Deed and he has signed on the original document also. But, signature of said Archaka Thimmaiah is not available in any portion of Ex.P.62. In Ex.P.62, there are thumb impressions said to be of Krishnappa and Patel Munivenkatappa. But, there is no reference in Ex.P.136 about those thumb impressions. By the side of those thumb impressions, there are signatures said to be those of Krishnappa and Patel Munivenkatappa in Ex.P.62. But,

in Ex.P.136, there is reference about signature of Patel Munivenkatappa, which is identified by Sri.Varadaraja Swamy Archaka Thimmaiah. But, such identification is not available in Ex.P.62. In Ex.P.136, there is no reference about signature of Krishnappa as it is in Ex.P.62. As per Ex.P.136, in the original Sale Deed, there is insertion of a word '¥ÀÇgÀé' after the words '£ÁUÀgÀ¨Á«UÀÉ ºÉÆÃUÀÄªÀ zÁj F

ªÀÄzsÉå EgÀÄªÀ RgÁ§Ä zÉÃT®Ä' and before the words '¥À²ÑªÀÄ 86 UÀd' relating to the description of 2nd item of the property sold under that document. But, no such insertion is found in Ex.P.62. All these circumstances also clearly show that Ex.P.62 is not a genuine document.

52. As per Ex.P.137, Patel Munivenkatappa purchased all those 6 items from Narayanappa on 10.11.1943. As Krishnappa son of Narappa purchased those properties from Patel Munivenkatappa, he should have possessed the original Sale Deed dated 10.11.1943. As the Accused-8 is claiming that he is Krishnappa son of Narappa, he should have possessed the said Sale Deed. But, he did not produce that Sale Deed before the Bank. It is not his contention that he has that original Sale Deed with him. This circumstance also strongly goes against the Accused-8.

53. As per Ex.P.139, said Krishnappa son of Narappa sold all those 6 items purchased by him under Ex.P.136 to Smt.Nanjamma and her adopted son-Krishnappa on

15.06.1953. As per Ex.P.138, said Nanjamma and her adopted son-Krishnappa have sold all those 6 items to Smt.Munilakshmamma on 03.05.1956. P.W.24-Sri.P.Kumar, who is the son of said Munilakshmamma, has also deposed about purchase of properties by his mother under Ex.P.138. As such, all those 6 items purchased under Ex.P.62 or Ex.P.136 by Krishnappa son of Narappa were not with him subsequent to 15.06.1953. As he sold those properties on 15.06.1953 itself and as the said properties went to Smt.Munilakshmamma as per Ex.P.138 subsequently, question of possessing original Sale Deed relating to Ex.P.62 or Ex.P.136 by the Accused-8 or Krishnappa son of Narappa does not arise. This circumstance also strongly goes against the genuineness of Ex.P.62.

54. Ex.P.67 is the Encumbrance Certificate for the period from 01.04.1949 to 30.09.1966 relating to vacant site bearing Khatha No.75 of Attiguppe village, measuring 115 feet x 113 feet said to have been issued by the Sub-Registrar of Bengaluru North Taluk, Bengaluru, on 17.06.1999. The Accused-8 has produced this document to the Bank as Encumbrance Certificate relating to the property purchased under Ex.P.62, which was offered as security to the Bank. P.W.13 has deposed that Ex.P.67 does not relate to Ex.P.62 and that the property shown in Ex.P.62 and that of the properties shown in Ex.P.67 are not one and the same. He has identified Ex.P.140 as the Encumbrance Certificate issued to the Complainant by the

Sub-Registrar, Peenya, Bengaluru Taluk, for the period from 01.04.1943 to 30.09.1966. This document contains all the encumbrances in detail relating to Ex.P.136 to Ex.P.139, which cannot be found in Ex.P.67. P.W.34 was also working as Sub-Registrar of Bengaluru North Taluk from 1996 to 1999. He has deposed that Ex.P.67 was issued by the Sub-Registrar, Bengaluru North Taluk. He has also deposed that though transaction dated 09.12.1950 is referred to in Ex.P.67, subsequent alienations as per Ex.P.138 and Ex.P.139 are not reflected in that document. In Ex.P.67, an entry is made relating to sale of "vacant site measuring 20 x 70 yards and other properties" on 09.12.1950 from Patel Munivenkatappa to Krishnappa. Though there is reference in Ex.P.62 and

Ex.P.136 at Item No.4 about sale of wet land measuring 20 yards, there are no recitals in those documents about sale of vacant site measuring 20 yards x 70 yards or 115 feet x 113 feet much less vacant site bearing Khatha No.75 as shown in Ex.P.67. There is nothing to show as to when actually and under what authority, Khatha No.75 was given to the property purchased under Ex.P.62 or Ex.P.136. All these circumstances show that Ex.P.67 is not a genuine document.

55. Ex.P.68 is said to be the Encumbrance Certificate for a period from 01.10.1966 to 21.06.1999 relating to Khaneshumari No.75 of Attiguppe Village measuring 115 feet x 113 feet. Ex.P.69 is said to be the Encumbrance Certificate for a period from 01.06.1999 to 11.07.2004 in

respect of the same property. But, boundaries of the property shown in these 2 documents differ from each other. There is no reference in Ex.P.62 or Ex.P.136 about the said property described in Ex.P.68 and Ex.P.69. The evidence of P.W.13 also shows that Ex.P.67 to Ex.P.69 do not relate to Ex.P.62. All these circumstances create a serious doubt about genuineness of Ex.P.67, Ex.P.68 and Ex.P.69.

56. Ex.P.63 is said to be a Receipt dated 02.06.1994 issued in respect of the property bearing No.75 measuring 115 x 113 feet of Attiguppe Village in the name of Krishnappa from BBMP Office, Binnypet Range. Ex.P.64 is said to be a Tax Receipt dated 10.12.2003 relating to property bearing No.75, 3rd Main Road, Chandra Layout, by the BBMP Binnypet Range. Ex.P.65 is said to be the Extract of Houses and Sites Revenue Document Register relating to property bearing Khatha No.75, measuring 115 feet x 113 feet in the name of Krishnappa son of Narayanappa issued by BBMP, Binnypet Range. So also, Ex.P.68 is said to be a Certificate issued by BBMP, Binnypet Range to the effect that said No.75 stands in the name of Krishnappa.

57. P.W.14 was working as Assistant Revenue Officer of Binnypet Range from May 2006 to September 2008. As per her evidence, Ex.P.63 to Ex.P.66 were not issued from her Office. In this regard, to a Letter issued by the CBI Officers, P.W.14 has given Reply as per Ex.P.141 and

Ex.P.142. Contents of Ex.P.141 and Ex.P.142 fortify the evidence of P.W.14. P.W.15 is the Assistant Revenue Officer working in the BBMP Office at Chandra Layout. It is his evidence that property bearing No.75, 3rd Main Road, Chandra Layout is not registered in his Office and that Ex.P.64 to Ex.P.66 were not issued from his Office. This witness has also sent his Reply to the CBI Officers as per Ex.P.143 and Ex.P.144. Contents of these documents fortify the evidence of P.W.15. P.W.17 was working as Assistant Revenue Officer in Binnypet Range of BBMP Office from 2000 to 2002. As per the evidence of this witness also, Ex.P.63 to Ex.P.66 were not issued from his Office. Thus, the evidence of P.W.14, P.W.15 and P.W.17 corroborate the evidence of P.W.13, which fortifies the contention of the Complainant that Ex.P.62 to Ex.P.69 are not genuine documents.

58. P.W.20 is working as Assistant Engineer in BBMP relating to Chandra Layout area. As per his evidence, he accompanied the CBI Officers along with Valuer, who had valued the property bearing No.75, which was mortgaged by the Accused-8 in favour of the Bank. It is his evidence that the said property bearing Khatha No.75 is situated in site No.100 and 101 as per BDA approved Layout Plan and that the said property falls in Sy.No.348 of Kempapura Agrahara Village, which was acquired by BDA, on 10.05.1978 for the purpose of forming Chandra Layout and that BDA is the owner of that property. He has identified Ex.P.166 as the Endorsement given by the Land

Acquisition Officer, Ex.P.167 as the EO Note prepared by him and Ex.P.168 as the Gazette Notification in respect of the said property. Contents of all these documents fortify the evidence of P.W.20. P.W.21 was working as Deputy Secretary of BDA in the year 2008. His evidence fully corroborates the evidence of P.W.20, which supports the evidence of P.W.13, P.W.14, P.W.15 and P.W.17 and strengthens the contention of the Complainant that Ex.P.62 to Ex.P.69 are not genuine documents. P.W.13, P.W.14, P.W.15, P.W.17, P.W.20 and P.W.21 have also stood well in the test of Cross-examination and there is no reason to disbelieve their evidence. Their evidence shows that the Accused-8 is not the owner of the property, which was given as security to the Bank by him.

59. Ex.P.28 is the Genealogical Tree Affidavit executed by the Accused-8. Ex.P.29 and Ex.P.30 are the Power of Attorneys said to have been executed by the daughters of the Accused-8. The Accused-8 has given Ex.P.28 to Ex.P.30 to the Bank while offering himself as Guarantor. In Ex.P.28 to Ex.P.30, the Accused-8 has shown his father's name as 'Narayanappa' and his address as 'No.75, 12th Cross, Vijaya Nagara, Bengaluru'. But, he has declared his father's name as 'Narappa' in other documents executed by him in the Bank and he is claiming that Ex.P.62 relates to him wherein father's name of Krishnappa is shown as 'Narappa'.

60. P.W.18-Sri.H.Ramesh is the Postman working at Vijaya Nagara Post Office. As per his evidence, his service area is Vijaya Nagara 10th to 17th Main and 1st Main to 5th Cross, Hosahalli. As per his evidence, a Postal Cover-Ex.P.164, which was addressed to Krishnappa, No.75, 12th Cross, Vijaya Nagara, Bengaluru-40, was entrusted to him for service and as the said address was not available, he made an Endorsement accordingly as per Ex.P.164(a). He has stated that there is no 12th Cross in Vijaya Nagara. Contents of Ex.P.164 corroborate the evidence of P.W.18. This witness has stood well in the test of Cross-examination. This evidence of P.W.18 shows that the address given by the Accused-8 is false and that as such, Ex.P.28 to Ex.P.30 are false documents.

61. P.W.5 and P.W.25 are also the Postmen working at Chennai. As per their evidence, Ex.P.79 and Ex.P.80 are the Postal Covers addressed to Smt.Nagarathna and the address of Smt.Nagarathna given on those Covers and in Ex.P.29 are one and the same and Smt.Nagarathna was not residing in the said address. P.W.36 is residing at No.23, Madhava Nagara, 2nd Lane, R.K.Nagara, 1st Main Road, Raja Annamalai Puram, Chennai-28. The same address is shown in Ex.P.29 as the address of Smt.Nagarathna. P.W.36 has deposed that Smt.Nagarathna was not residing in the said address and that he was residing in the said address from 2002 to 2010. Contents of Ex.P.29, Ex.P.79 and Ex.P.80 fortify the evidence of P.W.5, P.W.25 and P.W.36. P.W.40 has deposed that

when he sent a Postal Cover-Ex.P.192 to Smt.Uma Devi, to the address as described in Ex.P.30, said Postal Cover returned unserved due to 'Incomplete Address'. Contents of Ex.P.192 corroborate the evidence of P.W.40. These witnesses have stood well in the test of Cross-examination and there is no reason to disbelieve their evidence. This evidence shows that addresses of Smt.Nagarathna and Smt.Uma Devi, who are said to be the daughters of the Accused-8, given in Ex.P.29 and Ex.P.30 are false and as such, it is clear that Ex.P.29 and Ex.P.30 are also false documents.

62. From the evidence available on record, as discussed above, it is clear that Ex.P.28 to Ex.P.30 and Ex.P.62 to Ex.P.69 are forged documents. But, none of the witnesses referred to above or any of the witnesses examined on behalf of the Complainant has stated that the Accused-1, 6 and 7 have forged those documents.

63. The Complainant has strongly relied upon the Confession Statements of the Accused-6 and 8 recorded as per Ex.P.247 and Ex.P.248, wherein it is stated that the Accused-6 received Sale Deed from one Sri.Srinivasa, he handed over that document to the Accused-1 as per the instructions of the Accused-7, the Accused-1 obtained Khatha Extracts, Tax Receipts and Betterment Charge Payment Receipt and that he also took Encumbrance Certificates from the Sub-Registrar's Office and also secured Affidavits in the names of daughters of the

Accused-8 through Courier from Chennai & Pune and that thereafter, the Accused-6 introduced the Accused-8 to the Accused-1 to personate as 'Krishnappa' in the Bank and that for the said service rendered, he, the Accused-7 and 8 received money from the Accused-1. As observed above, as the said Statements are not recorded as required under law, they are not valid documents and no reliance could be placed on those documents. As observed above, except the said Confession Statements, there is no other evidence to substantiate the contention of the Complainant that the Accused-1, 6 and 7 forged the documents. As observed above, in the absence of such evidence, Confession Statements cannot be based for proving the alleged guilt of the Accused-1, 6 and 7. Even otherwise, the said Statements do not show that the Accused-1, 6 and 7 forged the documents much less Ex.P.28 to Ex.P.30 and

Ex.P.62 to Ex.P.69. As per the evidence of P.W.16, the Accused-8 produced all those documents in the Bank. As such, he is responsible for the alleged forgery. But, there is no evidence at all to show that the Accused-1, 6 and 7 forged those documents. Inspite of the same, the Trial Court has held that the Accused-1, 6 and 7 are guilty of forgery. The Trial Court has not discussed as to how actually the Accused-1, 6 and 7 committed forgery. As such, it is clear that the finding of the Trial Court that the Accused-1, 6 and 7 are guilty of the offence of forgery is baseless and perverse and the Trial Court has committed a serious error in giving such a finding. For all these reasons, this Point is answered in the negative.

POINT-3

64. According to the Complainant, the Accused-1, 6 and 7 along with the Accused-8 used the forged documents as genuine documents knowing to be forged documents for the purpose of obtaining credit facility from the Bank. The learned Public Prosecutor has contended that as the Accused-1 availed credit facility from the Bank with the assistance of the Accused-6 and 7 and on the guarantee of the Accused-8, who produced Ex.P.28 to Ex.P.30 and Ex.P.62 to Ex.P.69, it is clear that the Accused-1, 6, 7 and 8 used forged documents as genuine documents knowing to be forged documents. On the other hand, the learned Advocates appearing on behalf of the Accused-1, 6 to 8 denied the said contention of the learned Public Prosecutor on the ground that there is no evidence to show that the Accused-1, 6 and 7 used those documents knowing to be forged documents.

65. P.W.16 has deposed that the Accused-8 had come to the Bank and submitted Ex.P.28 to Ex.P.30 and Ex.P.62 to Ex.P.69. As observed above, the evidence on record indicates that Ex.P.28 to Ex.P.30 and Ex.P.62 to Ex.P.69 are forged documents and that the property covered under those documents, which was mortgaged to the Bank by the Accused-8, does not belong to the Accused-8. As the Accused-8 produced those forged documents in the Bank by offering himself as Guarantor by claiming that he was the owner of the property covered

under those documents, it has to be inferred that the Accused-8 was knowing that those documents were forged documents.

66. But, it is not the evidence of P.W.16 or any other witness examined on behalf of the Complainant that the Accused-1 was knowing that those documents produced by the Accused-8 were forged documents or that the Accused-1 produced those documents in the Bank as genuine documents knowing or having reason to believe that those documents are forged documents. P.W.8 has stated that the Accused-1 introduced the Accused-8 to the Chief Manager i.e., P.W.16. As observed above, P.W.16 has stated that the Accused-8 had come along with the Accused-1 and submitted documents in the Bank. On the basis of this evidence of P.W.8 and P.W.16, the learned Public Prosecutor has contended that as the Accused-1 introduced the Accused-8, who has produced the forged documents in the Bank, it is clear that the Accused-1 was knowing that the documents produced by the Accused-8 were forged documents and that as such, it has to be held that the Accused-1 used forged documents as genuine documents knowing fully well that those documents were forged documents. Though P.W.8 has stated that the Accused-1 introduced the Accused-8 to P.W.16 and though P.W.16 has stated that the Accused-8 had come along with the Accused-1 and submitted documents, it is not at all their evidence that the Accused-1 had knowledge about those forged documents. There is no evidence to show that

the Accused-1 had an opportunity to ascertain or to know that those documents were forged documents or to deal with those documents or the property covered under those documents. As the Accused-1 is no way related to the property mortgaged by the Accused-8 and also the documents produced by the Accused-8 and as there is no evidence, as observed above, that the Accused-1 forged those documents, merely because he introduced the Accused-8 to the Bank as his Guarantor, it cannot be inferred in the absence of any other evidence to show that the Accused-1 was knowing that the said documents produced by the Accused-8 were not genuine documents. As such, it is not fit to accept the bare argument of the learned Public Prosecutor against the Accused-1.

67. So also, the Accused-6 and 7 are no way related to the property mortgaged by the Accused-8 and the

documents produced by the Accused-8. As observed above, there is no evidence to show that the Accused-6 and 7 forged those documents. The Accused-6 and 7 did not produce any of those forged documents in the Bank. In fact, there is no evidence to show that the Accused-6 and 7 had come to the Bank or participated in any manner in the process of sanctioning credit facility to the Accused-1 on the guarantee of the Accused-8. There is also no evidence to show that the Accused-6 and 7 had an occasion to deal with those documents or the property covered under those documents. Hence, it is not possible to accept the bare contention of the learned Public

Prosecutor that the Accused-6 and 7 were also knowing that the documents produced by the Accused-8 were forged and that they used those documents as genuine documents.

68. As observed above, as the Confession Statements of the Accused-6 and 8 are not recorded as required under law and as except the said Confession Statements, there is no other evidence to substantiate the contention of the Complainant that the Accused-1, 6 and 7 had knowledge about those forged documents, Confession Statements cannot be based for inferring the alleged guilt of the Accused-1, 6 and 7 that knowing fully well that the documents were forged, they used those documents as genuine documents.

69. But, the Trial Court has not at all considered all the above facts, circumstances and the evidence. It failed to appreciate the evidence on record properly and on the other hand, erroneously it has come to the conclusion that the Accused-1, 6 and 7 also used the forged documents as genuine documents knowing to be forged documents for the purpose of getting credit facility to the Accused-1 from the Bank. For all these reasons, this Point is answered in negative.

POINT-4

70. According to the Complainant, the Accused-1, 6, 7 and 8 cheated the Bank in order to obtain credit facility

to the Accused-1 by submitting forged and fabricated documents in the name of the Accused-8. As observed above, it is not in dispute that the Firm of the Accused-1 to 5 had availed credit facility to the tune of Rs.30 Lakhs at Canara Bank, Vasantha Nagara Branch, Bengaluru, in the year 2003 on the security of the properties belonging to the Accused-2, 4 and 5. As observed above, as the Accused-1 to 5 approached the Bank for credit facility to the tune of Rs.100 Lakhs, including taking over liability with Canara Bank, the Bank directed the Accused-1 to 5 to furnish additional security apart from the security of the properties belonging to the Accused-2, 4 and 5, which were mortgaged to Canara Bank. It is also not in dispute that thereafter on the guarantee of the Accused-8 and on the security of the property offered by the Accused-8, the Bank sanctioned credit facility to the Accused-1 to 5 in the name of their Firm.

71. As observed above, the evidence on record shows that the property mortgaged by the Accused-8 to the Bank did not belong to him at the time of mortgage and that the documents pertaining to the said property produced by the Accused-8 to the Bank were forged documents. As observed above, the evidence on record shows that the Accused-8 is responsible for that forgery. The Bank has granted credit facility to the Accused-1 to 5 on the guarantee of the Accused-8 and on the security of the property mortgaged by him. As such, it is clear that the Accused-8 made the Bank to believe that he was the

owner of the property mortgaged by him and to accept him as Guarantor to the credit facility of the Accused-1 to 5. As he was not the owner of that property and as the documents produced by him in respect of that property were forged and as he is responsible for that forgery, it has to be inferred that he had dishonest and fraudulent intention to Cheat the Bank and that thereby he induced the Bank to grant credit facility to the Accused-1 to 5.

72. The learned Public Prosecutor has argued that as the Accused-1 introduced the Accused-8 as Guarantor, it has to be inferred that the Accused-1 had also dishonest and fraudulent intention to Cheat the Bank and that thereby he also induced the Bank to grant credit facility to him by accepting the guarantee of the Accused-8. As

observed above, there is no evidence to show that the Accused-1 involved in the forgery of the documents and that he was knowing fully well that those documents were forged documents. There is also no evidence to show that the Accused-1 was aware that the property mortgaged by the Accused-8 did not belong to the Accused-8 as on the date of credit transaction. As such, merely because the Accused-1 introduced the Accused-8 as Guarantor, it cannot be inferred that the Accused-1 had fraudulent or dishonest intention to Cheat the Bank and that he cheated the Bank accordingly.

73. P.W.16 has deposed that, before recommending for sanction of credit facility to the Firm of the Accused-1

to 5, he approached Canara Bank and got confirmed about satisfactory dealings of the said Firm with that Bank. This evidence shows that the Accused-1 has not done any fraudulent or dishonest act in his dealings with Canara Bank. P.W.4 has stated that 3 properties, which were given as security by the Accused-1 to 5 in respect of credit transaction with Canara Bank as well as the Bank, are genuine properties. He has also stated in his Cross-examination that at the time of sanctioning the loan, there was no doubt from any angle. When P.W.16 was questioned that there was no intention on the part of the Accused-1 to 5 to Cheat the Bank and that is why, they offered residential house property as Collateral Security, P.W.16 did not deny the said contention. On the other hand, he has stated that the Accused-1 to 5 have given Guarantor Krishnappa, who has offered property as additional Collateral Security. All these circumstances fortify the contention of the Accused-1 that he had no intention to Cheat the Bank, when he approached the Bank for credit facility.

74. It is not in dispute that the Accused-1 to 5 obtained the said credit facility from the Bank for running Wholesale Liquor Business. It is also not in dispute that at that time, they had license from the Government to run that business. According to the Accused-1, from 30.06.2005, the Government stopped renewal of the Wholesale Liquor License and as such, they could not run the Liquor Business and hence, they could not repay the

dues of the Bank in time. P.W.2, P.W.4 and P.W.16 did not deny the said contention of the Accused-1. According to the Accused-1, he and the Accused-2 to 5 have repaid the dues to the Bank subsequently and if at all, they had an intention of cheating the Bank, they would not have repaid the dues to the Bank. P.W.16 has admitted in his Cross-examination that as on the date of his evidence, the Accused-1 to 5 have repaid the entire amount borrowed by them. This answer fortifies the contention of the Accused-1.

75. None of the witnesses examined on behalf of the Complainant has stated about dishonest or fraudulent intention or acts of the Accused-1 to cheat the Bank. As observed above, there is no evidence to show the role of the Accused-1 in forging the documents in the name of the Accused-8 and production of those documents in the Bank. As observed above, there is no evidence placed to infer that the Accused-1 had knowledge about those forged documents. As observed above, dealings of the Accused-1 to 5 with Canara Bank were fair, the Accused-1 to 5 have furnished their properties as security and there is no flaw in respect of those properties and though they did not repay the dues of the Bank in time, they have subsequently cleared the dues of the Bank. As observed above, there is explanation of the Accused-1 that because of stopping of renewal of Liquor License by the Government, his Firm could not run the business for which his Firm had obtained credit facility from the Bank and the

said explanation of the Accused-1 is not denied by the Complainant. There is no reason to reject the said explanation offered by the Accused-1. On considering all these facts, circumstances and in the absence of any evidence on behalf of the Complainant, it is not possible to accept the bare argument of the learned Public Prosecutor that the Accused-1 has cheated the Bank.

76. There is no evidence to show that the Accused-6 and 7 have done any act of cheating the Bank relating to credit facility granted by the Bank to the Accused-1 to 5. The Accused-6 and 7 have not executed any documents and even they have not gone to the Bank in connection with the said credit facility granted by the Bank to the Accused-1 to 5. As observed above, there is nothing to show that the Accused-6 and 7 are responsible for forging

the documents in the name of the Accused-8 and using all those documents as genuine documents. The Accused-6 and 7 even did not introduce the Accused-1 or 8 to the Bank. As such, there is no evidence to show the role of the Accused-6 and 7 to make the Bank to grant credit facility to the Accused-1 to 5 on the guarantee of the Accused-8. Hence, the Accused-6 and 7 cannot be held as guilty of cheating the Bank.

77. Without considering all the above facts and circumstances and also the evidence available on record, the Trial Court has erroneously held that the Accused-1, 6 and 7 are guilty of cheating even in the absence of any

acceptable evidence in this regard. The said finding of the Trial Court is arbitrary and perverse. For all these reasons, this Point is answered in the negative.

POINT-5

78. According to the Complainant, the Accused-1, 6 and 7 entered into an agreement with the Accused-8 to Cheat the Bank by way of committing forgery, using forged documents as genuine documents and also to cheat by personation and thereby the Accused-1, 6 and 7 have committed Criminal Conspiracy. The learned Public Prosecutor has relied upon the evidence of P.W.16, P.W.40 and P.W.41 and also Ex.P.45, Ex.P.194, Ex.P.228, Ex.P.229, Ex.P.239, Ex.P.240, Ex.P.247 and Ex.P.248, to substantiate her arguments. On the other hand, the learned counsels for the Accused-1, 6 and 7 have contended that there is no such evidence much less the evidence of P.W.16, P.W.40 and P.W.41 to substantiate the claim of the Complainant.

79. As observed above, the evidence on record does not show that the Accused-8 has cheated by personation as alleged by the Complainant. As observed above, though the evidence on record indicates that the Accused-8 is responsible for forgery, using of forged documents in the Bank as genuine documents and cheating the Bank, there is no evidence to connect the Accused-1, 6 and 7 to the said acts of the Accused-8.

80. The learned Public Prosecutor has strongly relied upon Ex.P.247 and Ex.P.248-Confession Statements of the Accused-6 and 8 respectively and contended that the Accused-6 and 8 have confessed that the Accused-7 is a common friend of the Accused-1 and 6, the Accused-6 gave Ex.P.62 to the Accused-1, the Accused-6 introduced the Accused-8 to the Accused-1 and 7 for the purpose of personating as 'Krishnappa' and that all these Accused entered into an agreement to Cheat the Bank by way of forgery, using of forged documents as genuine documents and cheating by personation and that in pursuance of the said agreement, they have done all those acts. But, as observed above, Ex.P.247 and Ex.P.248 are not reliable and in the absence of supporting evidence, the said Confession Statements are not fit to be used against the Accused-1, 6, 7 and 8. As observed above, there is no supporting evidence in respect of the said allegations made in the Confession Statements. As such, Ex.P.247 and Ex.P.248 are of no assistance to the learned Public Prosecutor to substantiate her arguments.

81. It is the argument of the learned Public Prosecutor that as the Accused-6 received Rs.1.5 Lakhs from the Accused-1 and that as the Accused-7 received Rs.5 Lakhs from the Accused-1 through Cheques and that as the Accused-6 to 8 divided those Cheque amounts in between them, it has to be inferred that there was Conspiracy between the Accused-1, 6 to 8 to commit the offences against the Bank. Though the learned Public

Prosecutor has strongly relied upon the evidence of P.W.16 in this regard, P.W.16 has not stated that the Accused-6 to 8 received money from the Accused-1 through Cheques as contended by the learned Public Prosecutor.

82. According to the Complainant, Ex.P.194 is the Cheque for Rs.1,50,000/- issued by the Accused-1 in favour of the Accused-6. None of the witnesses examined by the Complainant, including P.W.16 and P.W.40, has stated that the Accused-6 encashed the said Cheque and that the Accused-6 to 8 got divided that Cheque amount among themselves. The learned Public Prosecutor has relied upon the evidence of P.W.41, who is a Handwriting Expert, and Specimen Signatures of the Accused-6 said to have been taken as per Ex.P.228, Ex.P.239 and Ex.P.240.

Q.4 is the mark given by P.W.41 to the alleged signature of the Accused-6 in Ex.P.194. P.W.41 examined Q.4 with reference to Ex.P.228, Ex.P.239 and Ex.P.240 and gave his Report as per Ex.P.243. But, it is not his evidence before the Court and Opinion in Ex.P.243 that authors of Q.4 and Ex.P.228, P.239 and Ex.P.240 are one and the same person. In fact, he did not express any Opinion about Q.4. As such, the evidence of P.W.41 is also of no assistance to the learned Public Prosecutor to substantiate her arguments.

83. Ex.P.45 is said to be the Cheque for Rs.5 Lakhs issued by the Accused-1 in favour of the Accused-7. In Ex.P.45, bearer's name is shown as 'Naveen'. The

Accused-7 is not 'Naveen', but, he is 'Naveen Hegde'. P.W.16 has stated in his Examination-in-chief that Ex.P.45 is a Cheque issued by Krishna Enterprises. But, he has not stated that the Accused-7 received that Cheque from the Accused-1 and that he encashed that Cheque amount and that the Accused-6 to 8 got divided that Cheque amount among themselves. On the other hand, in Pages-15 and 16 of his Cross-examination, he has stated that Ex.P.45 does not show any indication of being honoured or being cleared by the Bank. He has also stated that if a bearer Cheque of Rs.5 Lakhs is given, normally the Bank takes ID proof of the person in whose name the Cheque is drawn. He has also stated that he did not clear Ex.P.45 and that the Bank has collected the Identity documents of the person, who was the bearer of Ex.P.45. The Bank should have produced the said identity documents or the IO should have collected and produced those identity documents to show that the Accused-7 or any one among the Accused-6 to 8 encashed the said Cheque amount. But, it is not done so. There is no explanation from the Complainant in this regard. As the said identity documents are very material to substantiate the contention of the Complainant, in the absence of such material documentary evidence, an adverse inference has to be drawn against the Complainant. As such and as P.W.16 has not stated that the Accused-7 or the Accused-6 and 8 encashed the Cheque-Ex.P.45, the evidence of P.W.16 is of no assistance to the Complainant to substantiate the arguments of the learned Public Prosecutor.

84. P.W.40 has stated that he obtained Specimen Signatures of the Accused-7 as per Ex.P.229. Ex.P.229 indicates that the said document was prepared in the presence of Sri.A.J.Ashok Kumar of Syndicate Bank. But, said Sri.Ashok Kumar has not come forward to support the version of P.W.40. In the absence of such supporting evidence, it is difficult to rely upon the evidence of P.W.40 that Ex.P.229 consists of the Specimen Signatures of the Accused-7.

85. P.W.41 has stated in his evidence as well as in Ex.P.243 that Handwriting evidence points to the writer of Specimen Signatures marked as S.6 to S.10 i.e., Ex.P.229 being the person responsible for writing the questioned signature-Q.2 in Ex.P.45. Though P.W.41 has stated in his evidence that he compared and examined the Questioned Document with Specimen Document, in his evidence, he has not stated as to which are the points of similarities between the signature of the Accused-7 and Q.2. In Ex.P.243 at Page-3 though P.W.41 has listed 6 similarities between Q.2 and S.6 to S.10, he has not explained as to how and in what manner, there are similarities in between the Questioned Signature and Specimen Signature. As such, the Opinion of P.W.41 in Ex.P.243 is incomplete and vague.

86. In his Cross-examination, P.W.41 has stated that he has magnified the writings of Specimen Signatures and Disputed Signatures during comparison. He has also

admitted that compared signatures, writings and the document will be stored in a negative film. But, P.W.41 has not produced the said magnified writings and stored material before the Court for appreciating his Opinion. In the absence of such material, it is not possible to the Court to appreciate the evidence and Opinion given by P.W.41.

87. As observed above, in the absence of supporting evidence, it is not fit to accept the evidence of P.W.40 that Ex.P.229 contains the Specimen Signatures of the Accused-7. As observed above, the Opinion of P.W.41 is incomplete and vague, and P.W.41 did not produce the magnified signatures and other materials used for the purpose of comparison so as to enable the Court to appreciate his Opinion by comparison. As such, it is not

safe to rely upon the evidence of P.W.41. Furthermore, Expert evidence is not decisive and it can be used only as corroborative evidence to the other evidence available on record. In the case on hand, there is no other evidence to show that the Accused-7 has encashed Ex.P.45 by presenting it to the Bank. In the absence of such evidence, the evidence of P.W.41 and his Opinion is of no assistance to the Complainant to substantiate his contention.

88. Thus, it is clear that, there is no evidence to show that the Accused-6 to 8 received money from the Accused-1 as contended by the Complainant. Even for a moment, if it is believed that the Accused-6 and 7 received the Cheques from the Accused-1, as the Accused-6 is doing

Financial Business and as the Accused-7 is doing Liquor Business, they might have received said Cheques from the Accused-1 relating to their business with the Accused-1. There is nothing on behalf of the Complainant to show that the Accused-6 and 7 received the said Cheques from the Accused-1 as a reward to commit the offences alleged by the Complainant. All these circumstances negative the contention of the Complainant.

89. From the above discussion, it is clear that there is no evidence to connect the Accused-1, 6 and 7 to the acts of the Accused-8 and that the Accused-1, 6 and 7 helped or assisted the Accused-8 to forge the documents, use the forged documents in the Bank and to Cheat the Bank. The evidence on record does not show agreement in between the Accused-1, 6 to 8 in any manner to commit the said acts. For all these reasons, it is not possible to accept the bare contention of the Complainant that there was Criminal Conspiracy between the Accused-1, 6 to 8 for the purpose of cheating by way of forgery and using forged documents in the Bank. The Trial Court has ignored all these aspects, failed to appreciate the evidence on record properly and erroneously accepted the contention of the Complainant straight away though there is no acceptable evidence to substantiate the same. Hence, this Point is answered in the negative.

POINT-6

90. As observed above, the Complainant has failed to place acceptable evidence to show that the Accused-1, 6 and 7 entered into Criminal Conspiracy, the Accused-1, 6 and 7 forged the documents and used those documents as genuine documents and that they cheated the Bank as charged against them. As such, they cannot be held guilty for the offences punishable under Sections 120-B, 467, 468, 471 and 420 of the IPC. As observed above, the Trial Court has committed error in appreciating the evidence properly, failed to give benefit of doubts to the Accused-1, 6 and 7 and erroneously accepted the contention of the Complainant though there is no evidence, which has resulted in conviction of the Accused-1, 6 and 7. Hence, conviction of the Accused-1, 6 and 7 made by the Trial Court is unsustainable and consequently, sentencing of the Accused-1, 6 and 7 for those offences is also unsustainable. For all these reasons, this Point is answered in the affirmative.

POINT-7

91. In view of the negative findings on Points-1 to 5 and affirmative finding on Point-6, the Appeals of the Accused-1, 6 and 7 are fit to be allowed and consequently, Judgment of conviction and sentence passed by the Trial Court is liable to be set aside. In the result, the following Order is passed:

65 [Common Judgment in Criminal Appeal Nos.74/2013, 76/2013 & 84/2013]

ORDER

1. The Appeal of the Accused-1 in Criminal Appeal No.76/2013, the Appeal of the Accused-6 in Criminal Appeal No.84/2013 and the Appeal of the Accused-7 in Criminal Appeal No.74/2013 are allowed.

2. Judgment of conviction and sentence passed by the Trial Court against the Accused-1, 6 and 7 in C.C.No.19957/2008 for the offences punishable under Sections 120-B, 467, 468, 471 and 420 of the IPC is set aside, the Accused-1, 6 and 7 are acquitted from the Charges of those offences and they are set at liberty.

3. Appeal of the Accused-8 in Criminal Appeal No.84/2013 stands abated already.

4. Send the records to the Trial Court along with copy of this Judgment.

5. Keep the original of this Judgment in Criminal Appeal No.76/2013 and Copies of this Judgment in Criminal Appeal Nos.74/2013 and 84/2013.

(Dictated to Judgment Writer, transcribed by her, revised, corrected and then pronounced by me in the Open Court on this the 30th day of April 2016.) (ASWATHA NARAYANA) XLVII Additional City Civil & Sessions Judge and Special Judge for CBI Cases, Bengaluru.

66 [Common Judgment in Criminal Appeal Nos.74/2013, 76/2013 & 84/2013]